March 31, 2026 - Updated September 2, 2026

To: The Honorable Kathy Hochul
Members of the New York State Legislature

On behalf of the New York State Gaming Commission and the Office of Addiction Services and Supports (OASAS), we respectfully submit this annual report as required by N.Y. Racing, Pari-Mutuel Wagering and Breeding Law Section 1367-a(6). The statute requires the Commission and OASAS to submit an annual report to the Governor and Legislature "on the impact of mobile sports wagering on problem gamblers in New York, including, to the extent practicable, an analysis of demographics which are disproportionately impacted by the problem gambling."

The 2025 report is the second report to include required data points from the nine licensed mobile sports wagering licensees in New York State. The Commission provided a template worksheet to all licensees with instruction and guidance to provide existing datapoints. The Commission and OASAS spent significant time processing the tens of millions of datapoints submitted in response and working with licensees to obtain consistent datasets.

The Commission and OASAS will continue to partner to research, analyze and address demographic statistics regarding mobile sports wagering to ensure that resources are best directed where they are needed, and that protections are put in place to protect vulnerable New Yorkers.

Respectfully Submitted,

Robert Williams
Executive Director
New York State Gaming Commission

Chinazo Cunningham, M.D., M.S.
Commissioner
New York State Office of Addiction Services and Supports

N.Y. Racing, Pari-Mutuel Wagering and Breeding Law § 1367-a(6)

The commission, in conjunction with the office of addiction services and supports, shall annually cause a report to be prepared and distributed to the governor and the legislature on the impact of mobile sports wagering on problem gamblers in New York, including, to the extent practicable, an analysis of demographics which are disproportionately impacted by the problem gambling. The costs associated with the preparation and distribution of the report shall be borne by mobile sports wagering licensees and the commission shall be authorized to assess a fee against mobile sports wagering licensees for these purposes. The commission, or in the case that an independent integrity monitor has been established, such independent integrity monitor shall also report biannually to the governor and the legislature on the effectiveness of the statutory and regulatory controls in place to ensure the integrity of mobile sports wagering operations.

N.Y. Mental Hygiene Law § 19.07(a)

The office of alcoholism and substance abuse services is charged with the responsibility for assuring the development of comprehensive plans, programs, and services in the areas of research, prevention, care, treatment, rehabilitation, including relapse prevention and recovery maintenance, education, and training of persons who abuse or are dependent on alcohol and/or substances and their families. Such plans, programs, and services shall be developed with the cooperation of the office, the other offices of the department where appropriate, local governments, consumers and community organizations and entities. The office shall provide appropriate facilities and shall encourage the provision of facilities by local government and community organizations and entities. The office is also responsible for developing plans, programs and services related to compulsive gambling education, prevention and treatment consistent with section 41.57 of this chapter.

Background

Chapter 59 of the Laws of 2021 amended N.Y. Racing, Pari-Mutuel Wagering and Breeding Law § 1367 and added § 1367-a to authorize mobile sports wagering when the sports wager is made through virtual or electronic means from a location within New York State and is transmitted to and accepted by electronic equipment located at a licensed commercial casino gaming facility. The statute also directed the Commission to conduct a competitive bidding process to award mobile sports wagering licenses. The Commission unanimously accepted the review committee's recommendations and awarded nine platform providers and operators with 10-year licenses at a tax rate of 51 percent.

The first mobile sports wager in N.Y.S. was placed January 8, 2022. Since then, the Commission has enacted additional regulatory measures to protect the betting public, including but not limited to the prohibition of mobile sports wagering marketing and advertising on college campuses and ensuring all licensees understand New York's requirement that a gambling harms message be included on all advertising,

OASAS oversees a continuum of care for addiction services that includes prevention, treatment, harm reduction and recovery support. Access to both inpatient and outpatient services for those affected by harms related to gambling, including for those who have been diagnosed with gambling disorder, are available throughout the state. Further, there are a range of community-based prevention efforts to raise awareness of the prevention and risk reduction of gambling. Further, OASAS seeks to mitigate potential harms associated with gambling by promoting harm reduction strategies such as setting additional time and money wagered limits, and limiting alcohol and drug use while gambling. In 2025, OASAS released a statewide public awareness campaign, Take a Pause, targeting those that are participating in mobile sports wagering and encouraging them to take a short survey that provides normative feedback on their current gambling behaviors and tips and resources if needed.

Definitions of Certain Terms Used in this Report

Term	Definition
Wager	A specific transaction placed by a patron on an authorized sporting event or events or an occurrence or occurrences therein
Transaction	Any interaction with a mobile sports wagering operator. This includes but is not limited to placing wagers, checking balances, scrolling through wagering options, etc.
Single wagers	Wager on a single play or event in a single sport
Parlay	A wager combining two or more single wagers

Revenue for Gambling Harms Treatment and Education

Currently, $6 million annually from New York State's tax on mobile sports wagering is dedicated for gambling harms education and treatment purposes, pursuant to N.Y. Racing, Pari-Mutuel Wagering and Breeding Law § 1367(8). Beginning in 2026, an additional $6 million annually is directed for such purposes.

In addition to revenue from mobile sports wagering licensees, existing commercial casino licensees, of which there were four in 2025, pay an annual fee of $500 per slot machine and table to New York State for OASAS-directed gambling harms treatment and education. By statute, three additional commercial casinos sited in New York must pay a $750 annual fee per slot machine and table to New York State for gambling harms treatment and education.

Marketing and Advertising Regulations

New York State's mobile sports wagering regulations:

- Hold licensees responsible for the content of their advertising, marketing and branding;
- Require all public-facing advertisements to clearly include the HOPEline to increase awareness and availability of services for those affected by gambling harms;
- Prohibit false, deceptive, or misleading statements;
- Require that material facts and terms and conditions in all marketing and promotions be clearly and conspicuously disclosed;
- Allow customers to opt-out of receiving future direct advertisements;
- Prohibit advertisements to underage persons or design elements that appeal primarily to underage persons; and
- Prohibit mobile sports wagering from being promoted or advertised in college or university-owned news assets such as school newspapers, radio, or television broadcasts.

The Commission's Division of Gaming and Bureau of Risk Management's Compliance Unit review all licensees' proposed marketing and advertising materials to ensure they comply with these regulations.

Mobile Sports Wagering Licensees – 2025

Bally Bet	BetMGM	Caesars Sportsbook
DraftKings	ESPN Bet	Fanatics Sportsbook
FanDuel Sportsbook	Resorts World Bet*	Rush Street Interactive

**Ceased offering sports wagering in New York in June 2025.*

Sports Wagering Regulation

The authority to conduct mobile sports wagering is codified in N.Y.S. Racing, Pari-Mutuel Wagering and Breeding Law § 1367-a. The Commission's regulation of mobile sports wagering is covered by N.Y. Comp. Codes R. & Regs. tit. 9, Part 5330.

Geolocation

New York State law defines an "authorized sports bettor" as "an individual who is physically present in this state when placing a sports wager…" Commission Rule 5330.44 requires licensees to obtain Commission-approved geolocation services to ensure that all wagering account activity takes place within the State's borders.

Accounts and Wagering

In 2025:

New Yorkers wagered $25,375,820,000 in more than 2,024,714,389 transactions on mobile sports wagering platforms. Generally, the specific location of account activity within the state was consistent with population density across the state.

There were 7,196,000 unique mobile sports wagering accounts.

The average amount wagered per account was $3,500.

The average amount per wager was $42.

See Appendix 1 for data reported by mobile sports wagering operators.

Table 1. Mobile Sports Wagering Accounts and Wagers Reported, New York State, 2024 and 2025

Information on Accounts and Wagers Reported	2024	2025	% change, 2024-25
Amount Wagered by Account Holders[1]	$22,575,775,000	$25,375,820,000	+12.4%
Revenue to Mobile Sports Wagering Licensees[2]	$2,056,221,000	$2,220,621,000	+8.0%
Transactions Placed	1,706,095,000	2,024,714,389	+18.7%
Average Amount Wagered per Account[3]	$4,300	$3,500	-18.6%
Average Amount Wagered per Wager[3]	$41	$42	+2.4%
Number of Accounts[4]	4,805,000	7,196,000	+49.8%
Number of Unique Accounts Established Annually	2,144,000	1,537,000	-28.3%

[1] All accounts are authorized on mobile sports wagering licensee platforms
[2] Gross Gaming Revenue was reported by the licensee
[3] Averages were calculated overall rather than averaged by licensee
[4] Data provided geolocation services providers GeoComply and OpenBet
Note: There may be variation in licensees' reporting due to inherent differences in their specific algorithms and models to extract data.

Wager Determination

In 2025, New Yorkers wagered $25 billion in legal sport wagers. Of the total amount wagered, 36 percent were for basketball, 20 percent were for American football, and 17 percent were for baseball. Table 2 presents data, ordered by sports wager popularity.

Table 2. Total Amount ($) Wagered by Sport, 2025

% of Total Wagered	Sport	Amount ($) Wagered
36%	Basketball	9,130,071,000
20%	Football	5,045,522,000
17%	Baseball	4,424,708,000
12%	Tennis	3,019,653,000
7%	Soccer	1,704,689,000
4%	Hockey	1,138,925,000
1%	Fighting	342,648,000
1%	Golf	281,202,000
0%	Cricket	87,266,000
0%	Darts	55,523,000
0%	Boxing	49,931,000
0%	Others	20,570,000
0%	Table Tennis *	19,967,000
0%	Aussie Rules Football	16,653,000
0%	Auto Racing	16,470,000
0%	Rugby	6,989,000
0%	Volleyball	5,587,000
0%	Lacrosse *	3,659,000
0%	Jai-Alai *	1,754,000
0%	Snooker *	483,000
0%	Softball	205,000
0%	Cycling	164,000
0%	Olympics	91,000
0%	Sailing *	18,000
0%	Cornhole *	6,000
0%	Athletes Unlimited *	2,000
100%		**25,372,756,000**

Parlay wagers are broken down into each individual parlay by its corresponding sport category and the wager amount is included within each sport category.
* Note: Most activities within these sports had a limited wagering menu and restricted wagering limits.

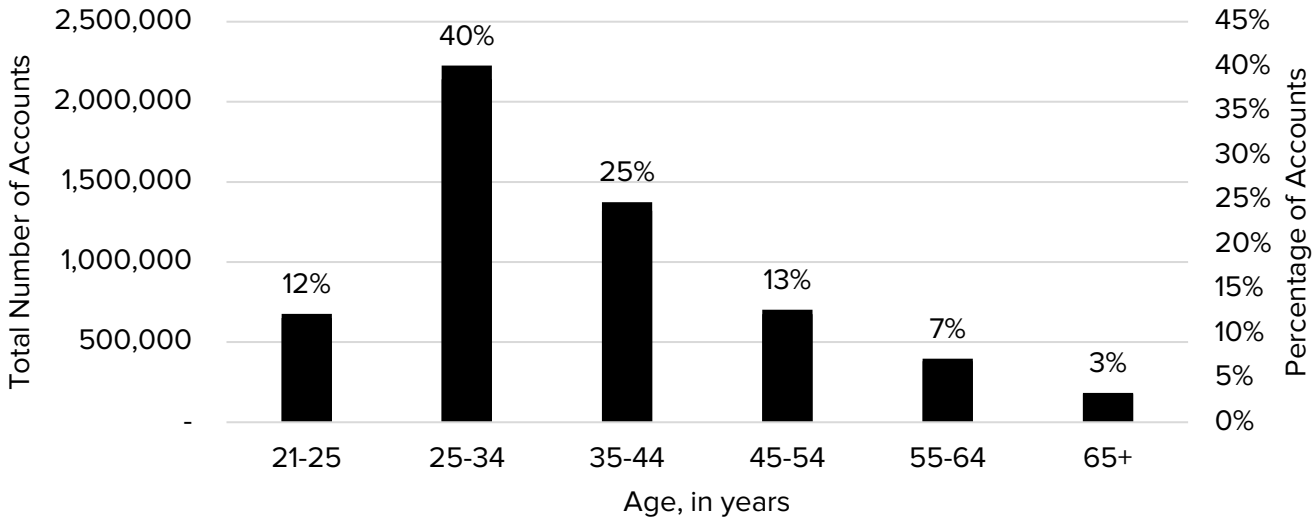
Account-Related Information on Mobile Sports Wagering Platforms

A range of account-related information is provided to authorized sports bettors on mobile sport wagering platforms, including deposit limits, time limits, total wager limits, and maximum loss limits. The availability of these self-imposed responsible gaming limits within each mobile sports licensee's website or mobile application are required by Commission Rule 5330.34.

In 2025, all but one mobile sport wagering licensees offered at least one of these account-related information notification points. Among the nine sports wagering operators in N.Y.S., eight offered deposit limits, seven offered total wager limit information, seven offered time limit information, five offered maximum wager size limit information, and eight offered loss limit information.

In 2025, of the 5,342,491 account holders who provided voluntary demographic information, 40% were between the ages of 25-34 years.

Figure 1. Number and Percentage of Account Holders, by Age Group, 2025[1]



Notes: [1]*There may be variation in licensees' reporting due to inherent differences in their specific algorithms and models to extract data.*. The table above reflects eight of nine operators that reported age data. The ninth operator ceased operations in June 2025.

Underage Access

N.Y.S. Racing, Pari-Mutuel Wagering and Breeding Law § 1367-a(4)(a)(iii) obligates each mobile sports wagering operator to implement measures to prohibit minors from participating in any sports wagering activity. The Commission, OASAS and the New York Council on Problem Gambling launched new training modules for retail and gaming facility employees to recognize and prevent underage access in 2025.

Additionally, as part of N.Y.S. Racing, Pari-Mutuel Wagering and Breeding Law § 1367-a(4)(a)(xv) and Commission Rule 5325.2(b)(3)(x), applied through Commission Rules 5329.34 and 5330.34, each operator was obligated to submit for approval, a problem-gambling plan that includes procedures to prevent gaming by minors.

This year, Commission staff requested each licensee report data regarding underage gambling activity. Likely due to inconsistent reporting methodologies, only three licensees identified such activity. Standardization of reporting will be sought for 2026 data.

One mobile sports wagering licensee reported 785 occasions wherein underaged individuals purportedly commenced the account establishment process. The licensee, which also operates a licensed Interactive Fantasy Sports platform, advised these accounts were initially verified through KYC procedures. However, prior to depositing funds or placing a wager, the applicants were required to submit further age identification. Those who were underage for mobile sports wagering had their accounts restricted and disabled from mobile sports wagering capability, but remained active for Interactive Fantasy Sports utilization, which has a lower age of participation.

Another licensee identified four account applicants below the age of 21 who accepted the platform's terms and conditions and spent time on the platform. However, when such underaged individuals sought to further engage with the licensee, they were directed to a screen identifying them as underaged. In no circumstances were any underage applicants permitted to make a deposit or sports wager.

A third operator identified two accounts opened in the last quarter of 2024 by underaged people. Each account was funded and utilized by the account holders through mid-March 2025, at which point they were identified by routine KYC testing as suspect and closed. While the manner of detection avoidance has been identified and remedied, these incidents are under review by the Commission and in stages of administrative adjudication.

In last year's Annual Report, the Commission noted 1,871 incidences involving underage gambling, with many being parents or friends providing unauthorized access to their lawfully established accounts by underaged family members or friends. In calendar 2025, the number of reported underage incidences was 1,972, again primarily due to lawfully established accounts created by of-age individuals providing access to and play by underage individuals.

Voluntary Self-Exclusion

New York State has a robust voluntary self-exclusion program for those individuals who recognize that they should no longer participate in legal gambling. An individual can self-exclude from all legal gambling statewide for one year, three years, five years or for their lifetime.

Between January 1, 2017, and December 31, 2025, 12,404 individuals signed up for self-exclusion. In 2025, there were 1,887 active individuals on the self-exclusion list.

HOPEline

OASAS operates a multi-lingual 24/7/365 confidential HOPEline (1-877-846-7369) which provides on-demand crisis support and referrals for those experiencing gambling harms and/or substance use harms. Calls are answered by bachelor's- and master's-level clinicians who have training in crisis response and who have extensive knowledge of gambling and substance use harms. Callers receive referrals as needed including to community-based supports as well as warm transfers to one of seven Problem Gambling Resource Centers throughout the State. Further, all callers have the option to talk to a peer with lived experience.

Between January 1, 2020 and December 31, 2025, the volume of calls to the HOPEline increased 8.5 percent from 2,345 calls in 2020 to 2,545 calls in 2025. The increase coincides with

additional exposure and access to the HOPEline through public service announcements, gambling licensee advertisements, and other promotional efforts to highlight the line as a resource for those experiencing gambling harms.

Prior to mobile sports wagering launching in January 2022, the top reason for calls made by those experiencing gambling harms were casino-based gambling. Since January 2022, the top reason has been online betting (e.g. mobile sports wagering).

Looking Forward

The practical implementation of the Commission's regulation regarding mobile sports wagering data collection became effective February 28, 2026. Licensees were expected to provide – on a template provided by the Commission and OASAS – datasets and demographics for calendar year 2025.

Collectively, the Commission and OASAS will continue their collaborative work to curb gambling-related harms and ensure help is available for those who need it. The agencies will also make improvements as needed to policies and regulations and collection protocols as new data and circumstances warrant.

Table 3. Account Wagering Activity per Account, by Mobile Sports Wagering Licensee, 2024 v. 2025

	Avg per Account	Avg per Wager	Avg per Account	Avg per Wager	Avg per Account	Avg per Wager
	2024		2025		Δ, 2024 to 2025	
Licensee 1	$2,290	$109	$5,381	$41	$3,091	($68)
Licensee 2	$5,206	$30	$4,789	$66	($417)	$36
Licensee 3	$1,963	$88	$1,615	$75	($348)	($13)
Licensee 4	$1,817	$75	$3,688	$94	$1,871	$19
Licensee 5	$6,650	$43	$1,923	$86	($4,727)	$43
Licensee 6	$4,058	$89	$11,004	$82	$6,946	($7)
Licensee 7	$4,509	$75	$2,621	$32	($1,888)	($43)
Licensee 8	$3,294	$113	$1,599	$129	($1,695)	$16
Licensee 9	$11,678	$43	$6,205	$97	($5,473)	$54